

## RESIDENTIAL REAL ESTATE

# Purchase and sale agreement

DATE

PROPERTY ADDRESS

## 1. Purchase and sale

The undersigned buyer ("Buyer") agrees to buy and the undersigned seller ("Seller") agrees to sell all that tract or parcel of land, with such improvements as are located thereon, described as follows:

\_\_\_\_\_

\_\_\_\_\_

Together with all fixtures, landscaping, improvements, and appurtenances, all being hereinafter collectively referred to as the "Property."

## 2. Purchase price and method of payment

Buyer warrants that Buyer will have sufficient cash at closing. The purchase price of the property to be paid by Buyer at closing is

\$ \_\_\_\_\_

## 3. Closing costs and discount points

Seller shall, at the time of closing, contribute a sum not to exceed \$ \_\_\_\_\_

## 4. Earnest money

Buyer will pay to \_\_\_\_\_ ("Holder") earnest money of \$ \_\_\_\_\_  
prior to end of due diligence period.

CLOSING AND POSSESSION

## 5. Property condition

Seller warrants that at the time of closing or upon the granting of possession if at a time other than closing, the Property will be in substantially the same condition as it was on Binding Agreement Date, except for normal wear and tear.

## 6. Taxes

Real estate taxes on said Property for the calendar year in which the sale is closed shall be prorated as of the date of closing. Buyer shall pay State of \_\_\_\_\_ property transfer tax.

## 7. Timing of closing and possession

This transaction shall be closed on or before \_\_\_\_\_, \_\_\_\_\_. In the event of unforeseen circumstances, the Buyer holds the right to extend the closing date another 15 business days.

## 8. Closing agent

\_\_\_\_\_ is to close this transaction; contact information provided below.

## TITLE

## 9. Warranty

Seller warrants that, at the time of closing, Seller will convey good and marketable title to said Property by General Warranty Deed.

## 10. Inspection

Buyer and/or Buyer's representatives shall have the right to enter the Property at Buyer's expense and at reasonable times (including immediately prior to closing) to thoroughly inspect, examine, test and survey the Property. This shall include the right to inspect and test for lead-based paint and lead-based paint hazards for not less than ten days from the Binding Agreement Date.

## 11. Property sold "as-is" with a due diligence period

All parties agree that the Property is being sold "as is," with all faults including but not limited to lead-based paint and lead-based paint hazards and damage from termites and other wood destroying organisms. The Seller shall have no obligations to make repairs to the Property.

Buyer shall have \_\_\_\_\_ business days from first access to inspect the property. Buyer may choose to terminate this agreement before the end of the Due Diligence Period without reason or cause and be entitled to a full refund of its Earnest Money.

## OTHER PROVISIONS

## 12. Binding effect, entire agreement, modification, assignment

This agreement shall be for the benefit of, and be binding upon Buyer and Seller, their heirs, successors, and legal representatives. This Agreement constitutes the sole and entire agreement between the parties hereto. Buyer reserves the right to close escrow in the entity of its choosing.

## 13. Survival of agreement

All conditions or stipulations not fulfilled at the time of closing shall survive the closing until such time as the conditions or stipulations are fulfilled.

## **14. Memorandum of contract**

Seller agrees that Buyer may execute, acknowledge and record a memorandum of this Contract, and, in the event Buyer elects to execute, acknowledge and record the Memorandum of Contract, Buyer shall execute, acknowledge and deliver to Escrow Agent a notice of termination and quitclaim deed of any interest in the property (the "Notice of Termination"). Escrow Agent shall, upon proper cancellation or termination of this Contract and without further instruction from the Parties, record the Notice of Termination in the Official Records of the County.

## **15. Delivered vacant**

The property must be delivered vacant on the closing date mentioned in this agreement, unless otherwise described in special stipulations below.

## **16. Right to list property**

Seller gives the Buyer rights to list the property on the Multiple Listing Service (MLS).

## **17. Access agreement**

Buyer to receive access to the property \_\_\_\_\_ days per week and \_\_\_\_\_ hour(s) per property visit.

## **18. Time limit offer**

This instrument shall be open for acceptance until: \_\_\_\_\_

## **19. Consent of continued involvement**

Seller consents to the licensee's continued involvement as a buyer in the subject transaction. Buyers are licensed real estate professionals.

## 20. Exhibits and addenda

All exhibits and/or addenda attached hereto, listed below, or referenced herein are made a part of this Agreement. If any such exhibit or addendum conflicts with any preceding paragraph, said exhibit or addendum shall control.

### SPECIAL STIPULATIONS

- **Property sold as-is**
- **Buyer pays all closing costs**

ADDITIONAL DEAL-SPECIFIC STIPULATIONS, IF ANY

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### SIGNATURES AND ACCEPTANCE

RE contract for: \_\_\_\_\_

The above "Agreement" or offer is hereby accepted on this \_\_\_\_\_ day of \_\_\_\_\_,  
\_\_\_\_\_.

BUYER

SELLER(S)

\_\_\_\_\_  
PRINTED BUYER NAME

\_\_\_\_\_  
PRINTED NAME

\_\_\_\_\_  
SIGNATURE

\_\_\_\_\_  
SIGNATURE

\_\_\_\_\_  
PHONE

\_\_\_\_\_  
PHONE

\_\_\_\_\_  
EMAIL

\_\_\_\_\_  
EMAIL

### CLOSING AGENT INFO

COMPANY NAME

PHONE

\_\_\_\_\_  
ADDRESS

## LIMITED POWER OF ATTORNEY

# Authorization to sign listing docs and offers

BE IT ACKNOWLEDGED that I/we, \_\_\_\_\_ "Seller", do hereby grant a limited and specific authorization to sign to \_\_\_\_\_ as my "Attorney-in-Fact". Said Attorney-in-Fact shall have full power and authority to undertake and perform the following acts on my behalf, related to \_\_\_\_\_ (the "Property"):

Seller specifically authorizes and gives permission to the Attorney-in-Fact to list the property on all multiple listing service(s) (MLS) for the purpose of marketing and selling the Property. This includes executing listing agreement(s), listing agreement addendum(s), disclosures, sales contracts and addendums.

The authority herein shall include such incidental acts as are reasonably required to carry authorities granted herein.

This authorization is effective upon execution. This authorization may be revoked when the above stated one (1) time power or responsibility has been completed.

This authorization form shall automatically be revoked upon my death or incapacitation, provided any person relying on this power of attorney shall have full rights to accept and rely upon the authority of the Attorney-in-Fact until receipt of actual notice of revocation.

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SELLER SIGNATURE

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PRINT

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DATE

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BUYER SIGNATURE

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PRINT

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DATE

## ADDENDUM TO PURCHASE AND SALE AGREEMENT

# Equity Buyer Program ("EBP") addendum

The undersigned parties to a Purchase and Sale Agreement dated \_\_\_\_\_ by and between \_\_\_\_\_ ("Buyer") and \_\_\_\_\_ ("Seller") for the purchase and sale of that certain property municipally known \_\_\_\_\_ ("Property"), hereby mutually agree to amend said Agreement as follows:

Seller has agreed to opt-in for the Equity Buyer's Program ("EBP"). EBP is a Seller assist program designed to work with buyers using both conventional and non-conventional loans. Seller can be paid more money to participate in EBP due to closing with a loan which may require repairs, appraisals, inspections, commissions, concessions, and other fees, that will be paid for or facilitated through the Equity Buyer's Program (EBP) and/or Retail Buyer. It isn't uncommon for the retail buyer in EBP to agree to pay 80-100% of the appraised value of Property. Seller will not incur any additional fees. Both parties agree to extend the closing timeline to adhere to any broker or loan requirements for EBP/retail buyer's loan to close. The target closing will take place after Seller has provided Buyer access to the property, and the property is listed on the MLS. The target closing is typically on or before 45-60 business days, but can be delayed due to bank, loan, or Property specific reasons. Property to be broom swept at move out.

All other terms and conditions of the Purchase Contract to remain the same.

BUYER(S)

SELLER(S)

\_\_\_\_\_  
SIGNATURE\_\_\_\_\_  
DATE\_\_\_\_\_  
SIGNATURE\_\_\_\_\_  
DATE

## RESCISSION AND RELEASE

# Conditional mutual rescission and release agreement

This Agreement of conditional mutual rescission and release of real estate agreement made and entered on \_\_\_\_\_ (date) by and between \_\_\_\_\_ (your company name) ("Party 1") and \_\_\_\_\_ (seller name) ("Party 2").

The parties hereby mutually acknowledge and agree that:

1. On \_\_\_\_\_, the parties entered into a contract, which is attached and marked Exhibit A.
2. The parties to that contract and to this agreement mutually agree on a condition of rescission and release only upon the following action(s):
  - a. a new buyer from the Equity Buyer Program ("EBP") is procured.
  - b. a new contract signed between the EBP Buyer, and Owner of Record for successful close of escrow.

When the actions above are fully met, then in that event, the parties hereby deem to immediately be rescinded by mutual rescission and release of the parties with the mutual rescission wish to rescind that contract. It is further understood if a closing isn't successful, the real estate agreement shall remain valid.

Therefore, in consideration of the mutual covenants of the parties, the parties hereby agree to this conditional agreement effective as of this day first written above. This agreement of conditional mutual rescission shall be binding upon the parties, their successors, assigns and personal representatives. Neither party shall have any further rights or duties thereunder.

This agreement shall be enforced under the laws of the State of \_\_\_\_\_. This is the entire agreement.

PARTY 1

PARTY 2

\_\_\_\_\_  
SIGNATURE

\_\_\_\_\_  
SIGNATURE

\_\_\_\_\_  
PRINTED NAME

\_\_\_\_\_  
PRINTED NAME